

HOUSE No. 1691

The Commonwealth of Massachusetts

PRESENTED BY:

Carole A. Fiola

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to certain offenses.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>1/14/2025</i>

HOUSE No. 1691

By Representative Fiola of Fall River, a petition (accompanied by bill, House, No. 1691) of Carole A. Fiola relative to conditions for release of persons accused of certain offenses involving physical force or abuse. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to certain offenses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 58A of chapter 276 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out subsection (1) and inserting in place thereof
3 the following subsection:-

4 (1) The commonwealth may move, based on dangerousness, for an order of pretrial
5 detention or release on conditions when a person has been charged with any of the following
6 offenses:

7 (A) a third or subsequent violation of section 24 of chapter 90 or section 8 of chapter 90B
8 within 10 years of the previous conviction for such violation;

9 (B) a violation of section 24G of chapter 90;

10 (C) a violation of section 8B of chapter 90B;

(D) an offense for which a mandatory minimum term of 3 years or more is prescribed in chapter 94C ;

(E) a violation of section 131N of chapter 140;

(F) a violation of an order pursuant to section 18, 34B or 34C of chapter 208;

(G) a violation of an order pursuant to section 32 of chapter 209;

(H) a violation involving abuse as defined in section 1 of chapter 209A while an order of protection issued under said chapter was in effect against the defendant;

(I) a violation of an order pursuant to section 3, 3B, 3C, 4 or 5 of chapter 209A;

(J) a violation of an order pursuant to section 15 or 20 of chapter 209C;

(K) a violation of an order involving abuse as defined pursuant to section 1 of chapter 258E;

(L) a violation of section 13, 13 ½, 13B, 13B ½, 13 B ¾, 13F, 18B, 22, 22A, 22B, 22C, 23, 23A, 23B, 24, 24B, 26, 26B, 26C, 26D, 43A, 50 or 51 of chapter 265;

(M) a violation of section 1, 2, 14, 17, 102, 102A, 102B, 102C or 112 of chapter 266;

(N) a violation of section 13B of chapter 268;

(O) a violation of subsection (a), (c), (d), (h), (j), (m) or (n) of section 10 of chapter 269;

(P) a violation of section 10A, 10E, 10F, 10G or 11C of chapter 269;

(Q) a violation of section 4A, 4B, 29A, 29B, 29C, 35A, 77 or 94 of chapter 272;

29 (R) a felony violation of section 105 of chapter 272;

30 (S) any other violation of any general or special law that constitutes a felony offense that
31 has as an element of said offense the use, attempted use or threatened use of physical force
32 against the person of another; or

33 (T) any violation of any general or special law that constitutes conspiracy or solicitation
34 to commit any crime identified in clauses (A) through (S), inclusive.